

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 09/08/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRIV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L21-06696
CASE NAME: STATES RECOVERY SYSTEMS, INC. VS. GARY WATSON
***HEARING ON MOTION IN RE: NTC AND MTN TO TAX COST**
FILED BY: WATSON, GARY
TENTATIVE RULING:

Defendant has filed a Motion to Tax Costs, but there is no indication that he provided notice to the Plaintiff.

Disposition

This motion will be continued to 1/12/27 at 9 a.m.

Defendant to provide notice to Plaintiff of hearing date as well as serve a copy of the motion.

2. 9:00 AM CASE NUMBER: L22-01864
CASE NAME: BANK OF AMERICA, N.A. VS. REKKI GRANT
***HEARING ON MOTION IN RE: TO ENFORCE SETTLEMENT (CCP 664.6)**
FILED BY: BANK OF AMERICA, N.A.
***TENTATIVE RULING**

Plaintiff filed a motion to enforce settlement, under Section 664.6 of the CCP.

The motion is unopposed, but there is no evidence that Plaintiff provided any notice of the hearing date to Defendant or served a copy of the motion.

Disposition

This motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide notice of the hearing to Defendant, and to serve a copy of the motion.

3. 9:00 AM CASE NUMBER: L23-05751

CASE NAME: CITIBANK, N.A. VS. PATRICIA TEOTONIO

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK, N.A.

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed, but the Plaintiff provided mail service of the Motion and notice of the hearing to an address for the Defendant that has not been used in this case (Santos Lane). Defendant did not provide an Answer, has filed no other pleadings, but Plaintiff personally served Defendant at a different address (Homestead).

It is unclear from where Plaintiff has acquired this Santos Lane address. There is no evidence that it actually is a proper mailing address for Defendant.

Thus, this court does not find that Plaintiff has properly notified Defendant of this Motion.

Disposition

Motion will be continued to 1/12/27 at 9 a.m.

Plaintiff to provide proper notice of hearing and to serve copy of Motion on Defendant.

4. 9:00 AM CASE NUMBER: L24-08932

CASE NAME: CITIBANK, N.A. VS. DOMINIC COSMI

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff originally filed a Motion to enter judgment per stipulation on 5/1/26, with a hearing date of 8/4/26. However, on 8/6/26, this court found that Plaintiff had not properly noticed Defendant, because there was no evidence that the address they used to provide notice was, in any way, linked to the Defendant. As of 8/6/26, Defendant had

not provided an Answer, and Plaintiff had not filed a proof of service of process.

The court continued the Motion to 9/8/26, 9am, and ordered Plaintiff to properly notify Defendant.

On 8/12/26, Plaintiff filed a proof of service of the process documents, reflecting that they served Defendant on 11/18/24, through substitute service, at the address that was used for the Motion filed on 5/1/26.

However, there is no indication that Plaintiff notified Defendant of the 9/8/26, hearing.

Disposition

This Motion will be continued, one last time, to 1/12/27, 9am.

Plaintiff is to notify Defendant of the new hearing date.

5. 9:00 AM CASE NUMBER: L24-11692
CASE NAME: LENDMARK FINANCIAL SERVICES, LLC, A LIMITED LIABILITY COMPANY VS. DAVID JOHNSON

***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**

FILED BY: JOHNSON, DAVID

***TENTATIVE RULING**

Mr. Gramajo, counsel for Defendant, filed a Motion to be relieved as counsel, along with a Declaration. He has provided notice to his client, the Defendant.

After a review of the Declaration, this court finds good cause to grant counsel's Motion.

Disposition

Motion will be granted.

Counsel for Defendant to file Order, provide written notice to Defendant, and to file proof of that notice.

6. 9:00 AM CASE NUMBER: L25-00011
CASE NAME: DISCOVER BANK VS. JUAN CRUZ
***HEARING ON MOTION IN RE: NTC AND MTN TO VACATE JUDGMENT**

FILED BY:

***TENTATIVE RULING**

Defendant filed a Motion, on 5/13/26, to vacate Judgment. The Motion is unopposed, but the Motion was originally scheduled to be heard 8/4/26, at which time the court found that Defendant had not provided any notice to the Plaintiff and continued the Motion to 9/8/26. The court also ordered

Defendant to provide notice of the 9/8/26, hearing, as well as serve a copy of the Motion on Plaintiff.

On 8/6/26, Plaintiff filed proof indicating that he served Plaintiff with a copy of the Motion. However, the Motion reflects the original date of 8/4/26. There is no indication that Defendant provided notice to Plaintiff of the 9/8/26, hearing.

Disposition

This is the second time Defendant has not properly notified the Plaintiff.

This Motion will be dropped.

7. 9:00 AM CASE NUMBER: L25-01159

CASE NAME: WELLS FARGO BANK, NA VS. RONALD REYES

***HEARING ON MOTION IN RE: MOTION TO VACATE DISMISSAL PER CCP 664.6 & ENTER JUDGMENT
FILED BY PLN ON 6/3/26**

FILED BY: WELLS FARGO BANK, NA

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with the process documents. Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that he was aware of this litigation. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$30,739.74, plus costs, less any credits for payments received.

The Defendant made payments of \$3,690.

Costs are \$460. An accounting of costs was provided in the Motion.

The Stipulated Agreement was filed 7/21/25.

The case was dismissed.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$27,049.74.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-05640
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. MICHELLE KING
*HEARING ON MOTION IN RE: MSJ
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Cesar Cervantes, and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail at an address provided on the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law.

Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of Cesar Cervantes, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Cervantes declared that he was familiar with the record keeping practice of American Express, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of American Express, such as their practice of providing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements and a Cardholder Agreement. The Cardholder Agreement provides the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Mr. Cervantes also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Mr. Cervantes, establish a *prima facie*

showing for Breach of Contract, and that the balance owed to the Plaintiff is \$3,832.87. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

A memo of costs, filed on 1/20/26, reflects that Plaintiff incurred costs of \$297.61.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

9. 9:00 AM CASE NUMBER: L25-07106
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. JUAN SALAZAR
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AGAINST DEFENDANTS**
FILED BY: SALAZAR, JUAN
***TENTATIVE RULING**

Defendants filed a Motion to set aside entry of default and default judgment.

Plaintiff filed a timely Response.

Background

The lawsuit is a subrogation matter where Defendants were alleged to be the responsible parties in a car accident in which the victim was insured by the Plaintiff.

Defendants argue that the default judgments against them should be set aside, under Section 473(b) of the CCP, because they failed to provide the process documents to their insurance company. This failure, they argue, qualifies as a mistake of fact, inadvertence, or excusable neglect.

They also allude to the fact that the service of these documents was not done on them personally.

No other reasons are offered.

The Complaint was filed on 6/26/25. Default was entered 11/12/25, with Judgment filed on 7/24/26.

Analysis

Section 473(b) of the CCP permits a court to set a default judgment in the case of mistake of fact, inadvertance, or excusable neglect on the part of the defendant. A defendant can mistakenly fail to file a timely response to a complaint. (See *Lieberman v. Aetna Ins. Co.* (1967) 249 CA2d 515, 523-524, where defendant mistakenly thought that only codefendant had been served.). But the defendant must identify the mistake that led to the default. (*Hopkings & Carley v. Gens* (2011) 200 CA 4th 1401, 1410-1411.) And the mistake must be excusable. A mistake is excusable when a reasonably prudent person under the same or similar circumstances might have made the same error. (*McClain v. Kissler* (2019) 39 CA5th 399, 414-415.) The burden of proving mistake lies with the defendant.

Excusable neglect is an act or omission that might be expected of a reasonably prudent person under similar circumstances. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 C4th 249, 258.) A defendant must establish that he used reasonable diligence. (*People ex rel Dep't of Transp. V. Superior Court (Isenhower)* (2003) 105 CA4th 39, 44. It is the defendant's burden to show excusable neglect. (*Bonzer v. City of Huntington Park* (1993) 20 CA4th 1474, 1478.

A court can also set aside a default judgment in the case that defendant did not actually receive notice of process, or when the service was otherwise void, under Sections 473.5 and 473(d) of the CCP, respectively.

Section 473.5 of the CCP permits the court to set aside a default judgment where it finds that the defendant was not given actual notice of the process. There is a limitation within which Defendant can seek relief under this section, however, and that is no later than two years after the entry of the default judgment. (Section 473.5(a) of CCP.)

Section 473 of the CCP also grants courts the power to set aside a default judgment when the judgment is void. To clarify this distinction, where Section 473.5 applies to cases where there is a lack of actual notice despite an otherwise *valid* judgment, such as proper constructive service, Section 473 applies to those instances where there is a lack of actual notice as a consequence of improper service. (See *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207.)

Service of process by delivering copies of the documents to someone other than defendant, and then subsequently mailing copies to the defendant, is permissible. *CCP 415.20(b)*. This service can occur at the defendant's "dwelling house [or] usual place of abode ... in the presence of a competent member of the household or a person apparently in charge of his or her ... usual mailing address." *Id.*

In the instant matter, Defendants seem to implicitly argue that they either did not receive

actual notice, or that service was improper, when they argue that “someone at Defendants’ residence was served with process at the home.” They go on to argue that the description of Defendant Salazar did not match the description on a traffic collision report.

But they don’t argue that they did not receive notice, or that the person who received the documents at the home was not a competent member of the household. What’s more, the proof of service (filed on 9/2/25, and of which this court takes judicial notice), reflects substitute service, so it seems fairly reasonable that the person on whom the documents were actually served may not physically resemble the defendants.

Since service was effected by a registered process server, there is a rebuttable presumption that service was done properly. Defendants have not rebutted this presumption.

Defendants rely on *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, for the argument that their reliance on their insurance carrier to defend them is excusable neglect. But in that case, the insured party promptly forwarded the summons and complaint to its insurance broker.

We don’t have that here. Defendants in the instant matter never sent any process documents to their insurance broker.

We have no other representation by the Defendants that this court can construe as a mistake, inadvertence, or excusable neglect.

The Defendants have not met their burden.

Disposition

Defendants’ Motion is denied.

Plaintiff to file Order.

10. 9:00 AM CASE NUMBER: L25-11026
CASE NAME: WELLS FARGO BANK, N.A. VS. GUADALUPE PALOMINO
***HEARING ON MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF**
NONAPPEARANCE
FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts

be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Set One," in Exhibit A of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating email service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

11. 9:00 AM CASE NUMBER: L25-14432
CASE NAME: WELLS FARGO BANK, N.A. VS. SAMANTHA THULL
*HEARING ON MOTION IN RE: MOTION TO DEEM REQ FOR ADMISSION ADMITTED/NON

APPEARANCE FILED BY PLN ON 6/4/26

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration.

Plaintiff attached the particular facts at issue, numbered One through Eleven and entitled, "Set One," in Exhibit A of their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating email service to counsel for Defendant.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit A of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.

12. 9:00 AM CASE NUMBER: L25-14683

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: DEMURRER TO COMPLAINT FILED BY YADAV ENTERPRISES INC ON 5/29/26

FILED BY: YADAV ENTERPRISES, INC.

TENTATIVE RULING:

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

The issues raised are identical to those raised by Defendant in the cases: L25-12479 and L25-12484. The court adopts the same ruling, with the ruling reflecting adjustments made in court on 7/28/26.

Background

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a

complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A demurrer "offers an appropriate procedural vehicle, in addition to a motion to compel arbitration, for pointing out to the court that the plaintiff has no right to sue because he or she has agreed to arbitrate." *Schatz v. Allen Matkins Leck Gamble & Mallory LLP* (2009) 45 Cal.4th 557, 572.

(Plaintiff, in their Response, cites *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972, for the apparent proposition that demurrers can be used for arbitration provisions in "limited circumstances," and that enforcement depends (of an arbitration provision) must be handled through a motion to compel arbitration. (P.3, Plaintiff's Response). But the court does not find anything related on the cited page of *Engalla*.)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Written agreements requiring arbitration as the method of resolution are governed by the California Arbitration Act ("CAA"). (See CCP Sections 1280 et seq.) Such provisions are binding as would be any other provision of a valid contract. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 991.

The statutes of the CAA stand in difference to those of the Mandatory Fee Arbitration Act ("MFAA," Sections 6200-6206 of the Business and Professions Code) in that while "[A]rbitration under the MFAA is nonbinding ... arbitration under the CAA is binding." *Id.*

What's more, there is nothing about the MFAA that precludes an attorney and client from entering into binding contractual arbitration. *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557, 562.

An additional, and significant, difference between the two acts concerns the act of waiver. The MFAA requires an attorney to inform a client of the client's rights to seek arbitration under the Act for disputes over fees. Yet, while a client's failure to respond to the attorney's notice constitutes waiver of this right under the MFAA, this conduct does not revoke any contract provision requiring arbitration unless the agreement permits such a waiver. (See *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557; and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 989 "If the client fails to invoke his or her rights under the MFAA ... the preexisting arbitration agreement is enforceable against the client.")

In the instant matter, the agreement between the two parties clearly calls for binding arbitration in the case of a fee dispute outside the jurisdiction of a court of small claims. What's more, the agreement says nothing about laying the burden on any particular party to trigger the arbitration process, and about whether any particular conduct constitutes a waiver of this provision. But the court will not read this silence to mean something more affirmative, such as requiring the party wishing to avail itself of arbitration to begin the process, and that a failure to do so waives their right to the remedy. If Plaintiff was dissatisfied with the Defendant's performance of the bargain – i.e. not paying fees – it should have started arbitration.

Instead, it attempted to shift the burden to Defendant, and when Defendant did not act, attempted to circumvent the explicit provision of the agreement entirely.

The court will permit the Plaintiff to amend the Complaint. However, the court intends to stay the suit pending arbitration. Thus, the deadline by which to amend the Complaint will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

Disposition

Defendant's Demurrer is sustained.

Plaintiff to begin the mediation process.

The Case will be stayed pending mediation and/or arbitration.

A control date of 1/20/27, 8:30 am, will be scheduled to ascertain the posture of mediation.

Defendant to file Order.

13. 9:00 AM CASE NUMBER: L26-04085
CASE NAME: PORTFOLIO RECOVERY ASSOCIATES, LLC VS. RUBEN ARIASRUIZ
***HEARING ON MOTION IN RE: TO COMPEL ARBITRATION AND STAY PROCEEDINGS**
FILED BY: ARIASRUIZ, RUBEN

***TENTATIVE RULING**

Defendant has filed a Motion to compel arbitration. The Motion is unopposed, but there is no evidence that Defendant provided notice to the Plaintiff.

Disposition

This Motion will be continued to 1/12/27, 9am

Defendant to properly notify and serve Plaintiff.

14. 9:00 AM CASE NUMBER: N26-0972
CASE NAME: MOHAMMED NAAR VS. EMPLOYMENT DEVELOPMENT DEPARTMENT 255-EDD-PFL-DEPARTMENT
***HEARING ON MOTION IN RE: FOR LEAVE TO FILE AMENDED COMPLAINT FROM PETITION TO COMPLAINT PURSUANT TO CCP 473**
FILED BY: NAAR, MOHAMMED

TENTATIVE RULING:

Petitioner filed a Motion to amend a petition to a complaint, under CCP 473.

The Motion is unopposed, but there is no evidence that Petitioner provided any notice to Respondent.

However, given the court's ultimate ruling, there is no prejudice to the Respondent, and the court will issue a tentative ruling. Should Petitioner wish to contest the tentative ruling, then this court will continue the Motion.

Background

Petitioner filed a Petition, on 6/8/26, to review the decision of the state unemployment insurance appeals board ("the Board"), rendered on 3/17/26, in which the Board affirmed the decision of the administrative law judge to deny Petitioner family leave benefits.

In this Motion, Petitioner seeks to amend the Petition by converting it into a complaint. He cites Section 473 of the CCP, but he does not suggest how this section applies to his matter. His argument for the request seems to be that he wants to ensure that he's seeking the appropriate legal remedy.

Analysis

Section 473 of the CCP permits a court to grant leave to a party to amend a pleading in case of mistake.

But there's no mistake apparent in the Petition.

Section 1094.5 of the CCP is the governing authority for an appeal of an administrative agency's decision. The chapter of this section makes quite clear that a party seeks relief from the superior court by petitioning for a writ of mandate. Petitioner's initial attempt at relief is the correct one.

There is no basis for leave to file a complaint.

Disposition

Petitioner's Motion is denied.

Court to issue Order.

15. 9:00 AM CASE NUMBER: N26-0983
CASE NAME: KENNEDY KOBLIN VS. AFSOON MIRZAI
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KOBLIN, KENNEDY
***TENTATIVE RULING**

Petitioner has filed a Petition to confirm an arbitration award. But Petitioner has not attached any documents from the arbiter that reflect the award, nor has Petitioner provided any notice to Respondent.

Disposition

This Petition will be continued to 1/12/27 at 9 a.m.

Petitioner to provide proper notice to Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0537
CASE NAME: MOUNT DIABLO REALTY & PROPERTY MANAGEMENT VS. CHAVA YEAL KINNIBURGH
JURY TRIAL

FILED BY: KINNIBURGH, CHAVA YEAL

TENTATIVE RULING: